IN THE CIRCUIT COURT, FIFTH
JUDICIAL CIRCUIT, IN AND FOR
MARION COUNTY, FLORIDA

CASE NO.: 2021-CA-2211

PATRICIA STROBO and JOE STROBO,

Plaintiffs,

vs.

WILLIAM RICHESON and BLAC INVESTMENTS, INC.,

Defendants.

NOTICE OF MEDIATION

By Court Order or agreement of the parties, this cause is referred to **Megan Russo, Esquire**, Post Office Box 331042, Atlantic Beach, Florida 32233, (904) 467-4477, megan@russoresolution.com, for Mediation pursuant to Chapter 44, Florida Statutes, and Rule 1.700, FRCP:

1. **DATE/LOCATION**: The Mediation Conference shall begin at **1:00 p.m. on August 18, 2022, to be held by Zoom,** and continue until recessed or terminated by the Mediator. The Mediator is hereby authorized to resolve scheduling conflicts without further Notice including rescheduling the Mediation Conference. The parties shall cooperate with the Mediator in all such matters. The time allotted for this Mediation is **4** hours; however, if time permits, the participants shall be prepared to spend as much time as necessary to resolve this matter, or until an Impasse is declared by the Mediator.

2. **ADMINISTRATIVE ORDER NO. 2013-13**: Administrative Order No. 2013-13, in the Circuit Court, Fourth Judicial Circuit, in and for Duval County, Florida, attached hereto and incorporated herein by reference, shall govern this mediation regardless of whether the mediation is set by agreement of the parties or Order of Court. All counsel, and all parties not represented by counsel, shall read and comply with the requirements set forth in Administrative Order No. 2013-13.

3. **ATTENDANCE:** The personal attendance of all parties, trial counsel and insurance representatives are required, unless excused by prior agreement of all parties or by leave of Court. Parties shall appear with complete authority to resolve the matters in dispute as defined by FRCP 1.72(b).

Electronically Filed Marion Case # 21CA002211AX 06/06/2022 02:54:18 PM

UNOFFICIAL DOCUMENT

(a) A corporate party shall send an authorized representative with complete authority to enter a full, complete and final compromise and settlement.

(b) If a party to mediation is a public entity required to operate in compliance with Chapter 286, Florida Statutes, that party shall be deemed to appear at a mediation conference by the physical presence of a representative with full authority to negotiate on behalf of the entity and to recommend settlement to the appropriate decision-making body of the entity.

(c) If insurance is involved in the action, the insurance carrier shall send a representative of the insured party, who is not counsel for a named party, who has full authority to settle up to the amount of the Plaintiff's last demand or the policy limits, whichever is less, **without further consultation.**

(d) If a party has knowledge of the existence of a lien, such as workers compensation, medical liens, or other subrogation liens, then that party shall give notice of the date, time and place of the Mediation Conference to the lien holder and request that such lien holder either appear in person at the Mediation Conference or have a representative available by telephone to compromise and resolve their lien.

4. **MEDIATION PROCESS**: Mediation is a process in which a neutral and impartial third party, the Mediator, acts to encourage and facilitate the resolution of a dispute. It is an informal non-adversarial process with the objective of helping the parties to communicate constructively and to voluntarily reach their own mutually acceptable resolution of the issues in dispute. A Mediator does not make rulings, give legal advice or determine the terms of the settlement. The Mediator has no power to either compel, interpret or enforce settlement agreements. This mediation shall be conducted in accordance with, governed by, and subject to Florida Statutes 44.107 and 44.401 – 44.406 unless a party or counsel serves a specific written objection on the Mediator and all parties prior to the beginning of the mediation. Absent such an objection, all parties will be deemed to have consented to proceeding pursuant to the above cited Florida Statutes.

5. **MEDIATION STATEMENTS AND SUMMARIES:** No less than 72 hours prior to the Mediation Conference, each party shall furnish to the Mediator, **with a copy to all counsel and pro se parties** a statement outlining the parties position as to the issues involved, the latest settlement negotiations and designating the persons who will appear at the Mediation Conference. Parties and counsel may attach documents to the mediation statement they wish the mediator to review. These statements should not be filed with the Court. Any party may communicate, through counsel if represented, with the Mediator at any time regarding the Mediation Conference. All discussions, representations and statements made at any time before, during or after the Mediation Conference shall be privileged as part of the Mediation process and settlement negotiations and shall not be admitted at trial or the subject to discovery.

6. **COMPENSATION OF MEDIATOR**: The Mediator's legal practice is devoted primarily to Mediation and the time reserved for Mediation typically may not be filled when the

UNOFFICIAL DOCUMENT

Mediation is canceled or rescheduled. The Mediator has set forth the terms of compensation, including the charges for the cancellation/rescheduling for this Mediation, in the addendum attached hereto and incorporated herein by reference as **Exhibit A** in accordance with Administrative Order No. 2013-13. It shall be the responsibility of the parties, and their counsel, to ensure that the Mediator's charges are promptly paid (i.e. within 30 days of receiving the Mediator's invoice) in accordance with the terms set forth in **Exhibit A** and Administrative Order No. 2013-13. The failure of any party or their counsel to make timely payment shall expose the party and their counsel to additional fees, costs and sanctions as the circumstances require. Disputes between the parties as to the charges related to the Mediation, or cancellation/rescheduling, shall be determined by the Court and not be decided by the Mediator.

7. **SETTLEMENT OR TERMINATION OF LITIGATION**: It shall be the responsibility of counsel for all parties to immediately notify the Court and the Mediator, in writing, of any settlement or other termination of this litigation. Failure to do so may result in cancellation fees as set out in **Exhibit A**.

Dated June 6, 2022.

RESPECTFULLY SUBMITTED,

/s/ Megan Russo

MEGAN RUSSO - Mediator
Florida Bar No. 0794341
Certification No: 38600R
Post Office Box 331042
Atlantic Beach, Florida 32233
(904) 467-4477
megan@russoresolution.com

Copies to:
William Allen, Esquire
Rachel O'Brien, Esquire
rachel@hrkmlaw.com;
erestine@hrkmlaw.com;
service@allenlaw.com;
melissa@allenlaw.com;
kelly@allenlaw.com;

UNOFFICIAL DOCUMENT

EXHIBIT A

RATE OF COMPENSATION: The Mediator shall be compensated at the rate of $350.00 an hour for cases involving one Plaintiff and one Defendant. For cases involving three parties, the mediator shall be compensated at the rate of $400.00 an hour. If there are four or more parties, the mediator shall be compensated at the rate of $450.00 an hour. Parties represented by the same attorney and having similar legal and factual identities (e.g., husband/wife, employer/employee) shall be treated as one. The Mediator shall also be reimbursed expenses incurred in connection with the Mediation, including costs for facilities utilized for Mediation, parking, and mileage outside of Jacksonville (when applicable). The Mediator will not charge for travel time to mediations in the following counties-Saint Johns, Clay, Nassau, and Baker. For travel to all other Florida counties, Mediator shall be compensated at the rate equal to one-half (½) of the applicable hourly rate.

a. The Mediator is responsible for scheduling, preparing the mediation notice and preparing the mediation disposition report for submission to the Court and parties. The Mediator is entitled to charge one hour for the time involved in these administrative functions, at the rate equal to the applicable hourly rate.

b. If at any time within 10 business days, the mediation is cancelled or rescheduled (other than at the request of the Mediator), if the parties fail to appear, or if the case settles without notice to the Mediator, the Mediator may charge two hours for a half day Mediation and four hours for a full day Mediation, at the applicable hourly rate.

c. A minimum of two hours will be made for a mediation scheduled for a half day and a minimum charge of four hours will be made for a mediation scheduled for a full day, in addition to the charges in paragraph a.

d. All mediation charges will be divided equally among the parties, unless otherwise agreed.

e. Mediation charges are due within 30 days of receipt.

.

MEGAN RUSSO - Mediator
Florida Bar No. 0794341
Certification No: 38600R
Post Office Box 331042
Atlantic Beach, Florida 32233
(904) 467-4477
megan@russoresolution.com

UNOFFICIAL DOCUMENT